

26STCV00509 26STCV00509

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-17

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Case Number: 26STCV00509 Hearing Date: July 17, 2026 Dept: 529

Shahrooz bigonah v.

grandview financial services and Does 1-50

Motion to quash service of summons and complaint

Date

of Hearing: 07/17/2026 Trial Date: None set

Department: 529 Case

No.: 26STCV00509

Moving

Party: Specially

Appearing Defendant Grandview Financial Services Inc.

Responding

Party: Plaintiff Shahrooz Bigonah (pro per plaintiff)

BACKGROUND

This

action arises out of the alleged unlawful repossession of plaintiff's motor vehicle. The parties entered into a motor vehicle retail installment sales contract pursuant to which plaintiff alleges he made multiple payments "of approximately \$650 per month," but defendant credited only \$12 to \$20 per payment, "fraudulently inflating the loan balance." Defendant then authorized and executed repossession of the vehicle.

On

January 7, 2026, plaintiff Shahrooz Bigonah filed a complaint against defendant Grandview Financial Services and Does 1-50, asserting the following causes of action:

1)

Violation of Rees-Levering Automobile Sales
Finance Act (Civ. Code, § 2981 et seq.)

2)

Violation of California Financing Law (Fin.
Code, § 22000 et seq.)

3)

Violation of Rosenthal Fair Debt Collection
Practices Act (Civ. Code, § 1788 et seq.)

4)

Unfair Business Practices (Bus. & Prof.
Code, § 17200)

5)

Fraud/Intentional Misrepresentation

6)

Conversion

7)

Accounting

8)

Declaratory and Injunctive Relief

9)

Fraud/Intentional Misrepresentation – Civ.
Code, §§ 1709, 1710

10) Misrepresentation
and intentional concealment.

11) Regulatory Enforcement/Violations – DFPI,
CFPB, DMV, California AG

12) Negligence

On

June 15, 2026, specially appearing defendant Grandview Financial Services, Inc. filed the present Motion to Quash Service of Summons and Complaint. On June 22, 2026, plaintiff filed an opposition. On July 10, 2026, defendant filed a reply.

[TENTATIVE] RULING

Specially

appearing defendant Grandview Financial Services, Inc.'s Motion to Quash Service of Summons and Complaint is Granted.

ANALYSIS

Procedural
Violations

Plaintiff's

opposition was not filed as an opposition but as a new motion with a different Reservation ID and hearing date. Defendant objected to this opposition in its reply but did not file any formal objections. Plaintiff intended the papers to function as an opposition to the motion to quash, and the court will exercise its discretion to treat them as such. No prejudice to defendant has been shown, and defendant itself treated the papers as an opposition on which to base its reply.

Discussion

Pursuant

to Code of Civil Procedure section 418.10(a)(1), defendant Grandview Financial Services, Inc. moves the court to quash service of the Summons and Complaint by plaintiff on the grounds that absent service by a statutorily authorized means, the court has not acquired jurisdiction over defendant.

When a

defendant moves to quash service of the summons and complaint, the plaintiff

has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence. (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

Defendant

asserts that its agent for service of process was never served with the Summons, Complaint, or Civil Case Sheet; that the Proof of Service filed by plaintiff on May 8, 2026 falsely states that its agent was so served; that the address on the Proof of Service is incorrect; and that the Proof of Service is defective on its face because it does not state the date or time of service. In opposition, plaintiff argues that he personally served defendant’s designated agent for process, Hayk Matevosian, and that neither of defendant’s arguments—that there is a discrepancy in suite number between service and the address on file with the Secretary of State and that the process server was not a registered process server—render service void as a matter of law.

The

Proof of Service filed by plaintiff on May 8, 2026 indicates that Hayk Matevosian, defendant’s agent for service of process, was personally served at 330 N. Brand Blvd., Suite 700, Glendale, CA 91203.

According

to the California Secretary of State website, defendant’s agent for service of process is an individual by the name of Hayk Matevosian, and the agent’s address is 500 N. Brand Blvd. #2150, Glendale, CA 91203. (This is the same address as defendant’s listed “Principal Address” and “Mailing Address.”) Further, Matevosian declares: “Defendant’s principal business address, and my address as Defendant’s agent for service of process, is 500 N. Brand Blvd. #2150, Glendale, CA 91203.” (Matevosian Decl., ¶ 3.) Matevosian explicitly states: “I have not, in my capacity as Defendant’s agent for service of process or in [any] capacity whatsoever, been personally served with any documents related to this lawsuit.” (Matevosian Decl., ¶ 2.)

Contrary

to plaintiff’s contention that there is a mere discrepancy of suite number between the Proof of Service and the designated address for service of process, the street address is entirely different. The Proof of Service is also missing the date and time of the purported service. “If served under Section 415.10, 415.20, or

415.30, by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter.” (Code Civ. Proc., § 417.10, subd. (a).) Here, service was purportedly effectuated via personal service under section 415.10, and thus, the Proof of Service must indicate the time of service. The Proof of Service does not indicate the date and time of service and is thus improper.

“The filing of a proof of service creates a rebuttable presumption that the service was proper. However, the presumption arises only if the proof of service complies with the applicable statutory requirements.” (Floveyor Internat., Ltd. v. Superior Ct. (1997) 59 Cal.App.4th 789, 795.) Here, the Proof of Service does not comply with applicable statutory requirements, and the court finds that plaintiff has not met his burden to establish that jurisdiction over defendant is proper under these facts. The Proof of Service does indicate date or time of service, the address on the Proof of Service does not match defendant’s registered address for service of process, and defendant’s agent declares he was never served with documents in this case. Plaintiff does not offer any evidence to counter these facts or to demonstrate that service was truly effectuated on defendant.

The court notes that plaintiff filed a second Proof of Service on June 26, 2026, which includes a date and time of service and corrects the address, but a different agent is listed as having been served—CT Corp Agent. The court makes no substantive findings as to this Proof of Service because it is not the subject of the present motion to quash.

CONCLUSION

Specially appearing defendant Grandview Financial Services, Inc.’s Motion to Quash Service of Summons and Complaint is Granted.